

25TRCV04235 25TRCV04235

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Case Number: 25TRCV04235 Hearing Date: July 16, 2026 Dept: M

LOS ANGELES SUPERIOR COURT – SOUTHWEST DISTRICT

Honorable Amy N. Carter

Department M

Thursday – July 16, 2026

Calendar No.

PROCEEDINGS

Faye

Lattimore-Shilling v. UCLA, et al.

25TRCV04235

1.

The Regents of
the University of California's Demurrer to First Amended Complaint

TENTATIVE RULING

The Regents of the University of California's Demurrer
to First Amended Complaint is sustained with 20 days leave to amend.

Background

Plaintiff filed the Complaint on December 17, 2025.

Plaintiff filed the First Amended Complaint on March 30, 2026. Plaintiff alleges the following facts. Plaintiff's First Amended Complaint is devoid of substantive facts. In reviewing Plaintiff's initial Complaint, it appears that Plaintiff is alleging that she was exposed to radiation while she was employed by Defendant. This fact is not included in the First Amended Complaint and the original Complaint has now been superseded by the First Amended Complaint. As to the cause of action or causes of action being alleged, this is unclear. Plaintiff has alleged a general negligence cause of action. However, on page 3 of the Form Complaint, Plaintiff checked off a box for "Intentional Tort," and has also handwritten the following words: "inducement, Wrongful Death, Exposure to radiation, and Toxic substances." (Complaint, p. 3).

Meet and Confer

Defendant filed meet and confer declarations in sufficient compliance with CCP §§ 430.41 and 435.5. (Decl., Amy A. Evenstad).

Demurrer

A demurrer tests the sufficiency of a complaint as a matter of law and raises only questions of law. (Schmidt v. Foundation Health (1995) 35 Cal.App.4th 1702, 1706.) In testing the sufficiency of the complaint, the court must assume the truth of (1) the properly pleaded factual allegations; (2) facts that can be reasonably inferred from those expressly pleaded; and (3) judicially noticed matters. (Blank v. Kirwan (1985) 39 Cal.3d 311, 318.)

The Court may not consider contentions, deductions, or conclusions of fact or law. (Moore v. Conliffe (1994) 7 Cal.App.4th 634, 638.) Because a demurrer tests the legal sufficiency of a complaint, the plaintiff must show that the complaint alleges facts sufficient to establish every element of each cause of action. (Rakestraw v. California Physicians Service (2000) 81 Cal.App.4th 39, 43.)

Where the complaint fails to state facts sufficient to constitute a cause of action, courts should sustain the demurrer. (C.C.P., § 430.10(e); Zelig v. County of Los Angeles (2002) 27 Cal.App.4th 1112, 1126.)

Sufficient facts are the essential facts of the case

"with reasonable precision and with particularity sufficiently specific to acquaint the defendant with the nature, source, and extent of his cause of

action.” (Gressley v. Williams

(1961) 193 Cal.App.2d 636, 643-644.)

“Whether the plaintiff will be able to prove the pleaded facts is irrelevant to ruling upon the demurrer.”

(Stevens v. Superior Court (1986) 180 Cal.App.3d 605,

609–610.) Under Code Civil Procedure §

430.10(f), a demurrer may also be sustained if a complaint is “uncertain.” Uncertainty exists where a complaint’s factual allegations are so confusing they do not sufficiently apprise a

defendant of the issues it is being asked to meet. (Williams v. Beechnut Nutrition Corp.

(1986) 185 Cal.App.3d 135, 139, fn. 2.)

Code Civ. Proc., § 430.10 states:

“The party against whom a complaint or cross-complaint

has been filed may object, by demurrer or answer as provided in Section 430.30,

to the pleading on any one or more of the following grounds:

(a) The court has no jurisdiction of the subject of the cause of action alleged in the pleading.

(b) The person who filed the pleading does not have the legal capacity to sue.

(c) There is another action pending between the same parties on the same cause of action.

(d) There is a defect or misjoinder of parties.

(e) The pleading does not state facts sufficient to constitute a cause of action.

(f) The pleading is uncertain. As used in this subdivision, “uncertain” includes ambiguous and unintelligible.

(g) In an action founded upon a contract, it cannot be ascertained from the pleading whether the contract is written, is oral, or is implied by conduct.

(h) No certificate was filed as required by Section 411.35.”

Defendant demurs to the First Amended Complaint pursuant to CCP § 430.10(a)(d)(e) and (f). Defendant argues that “the complaint fails to establish that this Court has jurisdiction over this matter because it does not identify a place of any alleged harm; the complaint fails to establish that the lawsuit was filed within the applicable statute of limitations period because the complaint doesn’t articulate a date of alleged loss; the complaint fails to establish that Defendant is the proper defendant because it doesn’t articulate any wrongful act or omission attributed to The Regents of the University of California as a whole, nor does it identify a specific university involved in any alleged wrongful act or omission; the complaint lacks sufficient facts to support any cause of action; and the complaint as a whole is uncertain as a result of these defects as well as Plaintiff’s failure to attach causes of action to her Judicial Council form complaint.” (Notice of Demurrer, p. 2, lines 4-12).

First, as a threshold matter, Defendant constantly refers to a demurrer to the “Complaint.” However, the Complaint has been superseded by the First Amended Complaint. The demurrer was filed after the filing and service of the First Amended Complaint. The meet and confer declaration attached the First Amended Complaint. The Court assumes that a clerical error occurred and that the references to the Complaint, in fact, is intended to mean First Amended Complaint.

Defendant’s demurrer to the First Amended Complaint is sustained with 20 days leave to amend. Plaintiff fails to state sufficient facts to state a cause of action, and the First Amended Complaint is uncertain.

“Except as otherwise provided by statute: A public entity is not liable for an injury, whether such injury arises out of an act or omission of the public entity or a public employee or any other person.” Gov. Code § 815(a). “[U]nder the Tort Claims Act all governmental tort liability is based on statute, the general rule that statutory causes of action must be pleaded with particularity is applicable. Thus, to state a cause of action against a public entity, every fact material to the existence of its statutory liability must be pleaded with particularity.” *Lopez v. Southern Cal. Rapid Transit Dist.* (1985) 40 Cal.3d 780, 795 (internal quotation omitted).

Not only has Plaintiff failed to allege a statutory basis for liability and specific facts to support a statutory basis for liability against a public entity, Plaintiff, in fact, has alleged no

substantive facts at all to support her cause or causes of action. Plaintiff simply states that Defendant caused various damages without any facts to show what Defendant did or did not do to Plaintiff. "To state a cause of action for negligence, a plaintiff must allege (1) the defendant owed the plaintiff a duty of care, (2) the defendant breached that duty, and (3) the breach proximately caused the plaintiff's damages or injuries." *Lueras v. BAC Home Loans Servicing, LP* (2013) 221 Cal.App.4th 49, 62. Currently, there are no facts to establish the existence of a duty of care or breach of the duty of care.

In addition, as currently alleged, Plaintiff has alleged no facts indicating the place of injury and date of injury. Finally, Plaintiff's references on page 3 of the Form Complaint, where Plaintiff checked off a box for "Intentional Tort," and handwrote the following words: "inducement, Wrongful Death, Exposure to radiation, and Toxic substances" are uncertain. The latter two terms are not recognizable causes of action. "Inducement" may indicate fraudulent inducement but no specific facts to support a fraud cause of action has been alleged. "Wrongful Death" is nonsensical as it would appear that Plaintiff is still alive.

The demurrer is sustained with 20 days leave to amend.

Motion to
Strike

The court may, upon a motion, or at any time in its discretion, and upon terms it deems proper, strike any irrelevant, false, or improper matter inserted in any pleading.

CCP § 436(a). The court may also strike all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. CCP § 436(b).

The grounds for a motion to strike are that the pleading has irrelevant, false or improper matter, or has not been drawn or filed in conformity with laws. CCP § 436.

The grounds for moving to strike must appear on the face of the pleading or by way of judicial notice. CCP § 437.

Defendant moves to strike the allegations and prayer for punitive damages.

Gov. Code, § 818 states:

“Notwithstanding any other provision of law, a public entity is not liable for damages awarded under Section 3294 of the Civil Code or other damages imposed primarily for the sake of example and by way of punishing the defendant.”

Civ. Code, § 3294 states, in relevant part:

“(a) In an action for the breach of an obligation not arising from contract, where it is proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice, the plaintiff, in addition to the actual damages, may recover damages for the sake of example and by way of punishing the defendant.

(b) An employer shall not be liable for damages pursuant to subdivision (a), based upon acts of an employee of the employer, unless the employer had advance knowledge of the unfitness of the employee and employed him or her with a conscious disregard of the rights or safety of others or authorized or ratified the wrongful conduct for which the damages are awarded or was personally guilty of oppression, fraud, or malice. With respect to a corporate employer, the advance knowledge and conscious disregard, authorization, ratification or act of oppression, fraud, or malice must be on the part of an officer, director, or managing agent of the corporation.”

The motion to strike is deemed moot upon the Court’s order sustaining the demurrer to the First Amended Complaint.

Defendant is ordered to give notice of this ruling.